

Tentative Rulings
May 18, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If all parties submit on a tentative ruling, it will become the ruling of the court. The tentative ruling may note particular issues on which the court requests the parties to provide further argument at the hearing. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the Court will no longer provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the department if you would like a copy of this form. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

14. *Percy v. Urbina, et al*, Case No. CIVSB2501710
Motion to Compelling Responses to Subpoena Duces Tecum
5/18/26, 9:00 a.m., Dept. S17

The Court would **GRANT** this unopposed motion.

Third Party, Uber Technologies, Inc., shall comply within ten (10) days. Responses may include objections.

The Court would also award sanctions in the amount of \$1,000, due within thirty (30) days. While the movant sought more in sanctions, the Court would deviate downward as the motion was terse, uncomplicated, and uncontested.

15. *Lopez v. United Parcel Service, Inc., et al*, Case No. CIVSB2512060
Defendant UPS's Motion for Judgment on the Pleadings
5/18/26, 9:00 a.m., Dept. S-17

This matter was continued from its original date on March 19, 2026, to allow meet-and-confer efforts

Tentative Ruling

As to Requests for Judicial Notice: The Court would **GRANT** Defendant's request to take notice of the bankruptcy filings [RJN, Exhs. A-B] and of the arbitration documents [RJN, Ex. D], for the purpose of showing that arbitration took place. The Court would **DENY** as to the collective bargaining agreement. (RJN, Exh. C.)

As to the Motion: The Court would **DENY**, without prejudice, as judicial estoppel cannot be determined from the facts alleged and bankruptcy filings alone. The Court would **GRANT LEAVE** of 30 days to allow for an amended complaint to address the standing issue.

Case Summary

This is, essentially, a discrimination and wrongful termination of employment action. Plaintiff alleges that he was hired by Defendant in 1997 to work at its Ontario, California facility. He asserts that, starting as of 2005, he was promoted to work in Revenue Audit, scanning boxes, among other things. Sometime in 2005, he asserts he felt a sharp pain in his shoulder and went through the workers' compensation process, being returned to work without restrictions. He was told to self-medicate with over-the-counter ibuprofen, but he alleges his shoulder injury never fully healed.